

Court No. - 21

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Shri A.L. Yadav, learned counsel for the respondents, the case is directed to be put-up as fresh on 19th October, 2012 so as to enable him to obtain instructions in the matter.

Order Date :- 15.10.2012

Ajeet...

Court No. - 21

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

It is submitted by Shri B.C. Rai, learned counsel for the petitioner that on receipt of the Provisional Assessment dated 15.6.2012, the petitioner made an Application dated 29th June, 2012 before the respondent no.3 praying that the Videography mentioned in the said Application be provided to the petitioner so as to enable the petitioner to file Objections against the Provisional Assessment.

It is further submitted that instead of providing the Videography mentioned in the said Application, the respondent no.2 passed an Order dated 3rd August, 2012 treating the application of the petitioner as Objections against the Provisional Assessment and rejecting the same.

By the said Order dated 3rd August, 2012, the respondent no.2 made Final Assessment for an amount of Rs. 2,36,377/-.

It is further submitted that as per the provisions contained in Clause 8.1 (b) of the U.P. Electricity Supply Code, 2005, the petitioner ought to have been provided opportunity of being heard.

It is further submitted that as per the said provisions, the authorized officer can make Final Assessment on the basis of Provisional Assessment only when he "finds that a case of theft has been established".

It is submitted that the impugned Order dated 3rd August, 2012 has not recorded any finding in this regard, and as such, the Order is vitiated.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos.1 to 3 has been accepted by Shri Amrit Lal Yadav, learned counsel for the said respondents.

Therefore, no notice need be sent to the respondents.

Counter Affidavit on behalf of the respondents may be filed within four weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List this case on 17th December, 2012.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by Shri B.C. Rai, learned counsel for the petitioner and Shri R.S. Umrao, holding brief for Shri Amrit Lal Yadav, learned counsel for the respondent nos. 1 to 3, it is directed that proceedings against the petitioner pursuant to the Final Assessment Order dated 3rd August, 2012 (Annexure 9 to the Writ Petition) will remain stayed till the next date fixed in the matter, provided by the next date fixed in the matter, the petitioner deposits an amount of Rs. 1,20,000/- with the respondent no.2.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

In the event of default on the part of the petitioner in making the deposit as directed above, this interim order will stand automatically vacated.

Order Date :- 5.11.2012

Ajeet...

Court No. - 21

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

Pursuant to the order dated 5.11.2012, the case has been put-up today as a fresh case.

Sri Dinesh Rai, holding brief for Sri B.C.Rai, learned counsel for the petitioner is present.

Sri Dinesh Rai, holding brief for Sri B.C.Rai, learned counsel for the petitioner states that as certified copy of the order dated 5.11.2012 was not issued to the petitioner in time, the petitioner has not been able to deposit Rs. 1,20,000/- with the respondent no.2, as per the directions given in the order dated 5.11.2012.

In the circumstances, it is prayed by Sri Dinesh Rai, holding brief for Sri B.C. Rai, learned counsel for the petitioner that the time for making the deposit , as per the directions given in the order dated 5.11.2012, be extended.

In view of the above, the case is directed to be listed on 21.1.2013.

Interim order, as contained in the order dated 5.11.2012 , will continue to remain in operation till the next date fixed in the matter, provided the petitioner makes the deposit, as per the directions contained in the said order dated 5.11.2012, by 3.1.2013.

Other terms , conditions and directions , as contained in the said order dated 5.11.2012 , will continue to remain operative.

Order Date :- 17.12.2012

aks

Court No. - 21

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav, S.C.

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Zaki Ullah Khan, J.

Pursuant to the Order dated 17.12.2012, the case is listed today.

List this case on 21.2.2013.

Interim Order, as contained in the Order dated 5.11.2012 read with the Order dated 17.12.2012, will continue to remain in operation till the next date fixed in the matter.

Order Date :- 21.1.2013

AK

Court No. - 3

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

List after two weeks.

Interim order, already granted, if operative today, shall continue to remain in operation till the next date of listing.

Order Date :- 21.2.2013

P.P.

Court No. - 9

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble B. Amit Sthalekar,J.

No counter affidavit has been filed although time allowed has expired.

Interim order already granted to continue

Order Date :- 8.3.2013

N Tiwari

Court No. - 3

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Laxmi Kanta Mohapatra,J.

Hon'ble Mrs. Sunita Agarwal,J.

List after two weeks.

Interim order, if operative today, shall continue to remain in operation till the next date of listing.

Order Date :- 15.3.2013

P.P.

Court No. - 21

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Yogesh Chandra Gupta,J.

Case called out.

Learned counsel for the petitioner is present.

List this case before the appropriate Bench on 13th May, 2013.

Interim Order, already granted, if operative today, will continue to remain operative, till the next date fixed in the matter.

Order Date :- 4.4.2013

shailesh

Court No. - 21

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- A.L. Yadav,S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Vipin Sinha,J.

Case called out.

Learned counsel for the petitioner is present.

List this case before the appropriate Bench on 27.05.2013.

The interim order, already granted, if operative today, will continue to remain operative till the next date fixed in the matter.

Order Date :- 13.5.2013

Sandeep

Court No. - 32

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav,S.C.

Hon'ble Prakash Krishna,J.

Hon'ble Manoj Kumar Gupta,J.

Counter affidavit is not on record. The counsel for the respondent is not present. The counsel for the petitioner states that he has received counter affidavit today. He prays for and is granted one month's time for filing rejoinder affidavit.

List in the month of August, 2013.

The stay order is extended till the next date of listing.

(Manoj Kumar Gupta,J.)

(Prakash Krishna,J.)

Order Date :- 27.5.2013

SKS

Court No. - 36

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav,S.C.

Hon'ble Vineet Saran,J.

Hon'ble B. Amit Sthalekar,J.

List in the next cause list.

Interim order, granted earlier, shall continue to operate till the next date of listing.

Order Date :- 1.8.2013

N Tiwari

(B. Amit Sthalekar, J.) (Vineet Saran, J.)

Court No. - 36

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, S.C.

Hon'ble Vineet Saran, J.

Hon'ble B. Amit Sthalekar, J.

List in the next cause list.

Interim order to continue till the next date of listing.

Order Date :- 8.8.2013

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(B. Amit Sthalekar, J.)

(Vineet Saran, J.)

Court No. - 36

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav,S.C.

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

List after two week by which time rejoinder affidavit be filed.

Interim order to continue till the next date of listing.

When the case is listed next, the name of Sri Baleshwar Chaturvedi be shown as counsel for the respondent.

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

Order Date :- 3.9.2013

AM/-

Court No. - 36

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, S.C.

Hon'ble Vineet Saran, J.

Hon'ble Manoj Kumar Gupta, J.

List in the next cause list.

Interim order to continue till the next date of listing.

(Manoj Kumar Gupta, J.) (Vineet Saran, J.)

Order Date :- 18.9.2013

AM/-

Court No. - 9

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav,S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Anjani Kumar Mishra,J.

List this case in the next cause list before the appropriate Bench.

Interim order, already granted, if operative today, will continue to remain in operation till the next date of listing.

Order Date :- 25.9.2013

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Court No. - 36

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav,S.C.

Hon'ble Vineet Saran,J.

Hon'ble Manoj Kumar Gupta,J.

List in the next cause list.

Interim order to continue till the next date of listing.

(Manoj Kumar Gupta, J) (Vineet Saran, J)

Order Date :- 3.10.2013

SKS

Court No. - 36

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, S.C.

Hon'ble Vineet Saran, J.

Hon'ble Manoj Kumar Gupta, J.

List in the next cause list.

Interim order to continue till the next date of listing.

(Manoj Kumar Gupta, J) (Vineet Saran, J)

Order Date :- 9.10.2013

SKS

Court No. - 32

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Rakesh Tiwari, J.

Hon'ble Amar Singh Chauhan, J.

Today, this case is listed under the heading of likely to be infructuous (without objection).

Learned counsel for the petitioner submits that in compliance of the Court's order dated 5.11.2012, petitioner has deposited a sum of Rs.1,20,000/- with the respondent no.2. He further submits that the writ petition has not become infructuous.

As a last opportunity, two weeks' time is granted to the counsel for petitioner for filing rejoinder affidavit.

List thereafter.

Order Date :- 5.2.2016

Mukesh

Court No. - 32

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Rakesh Tiwari, J.

Hon'ble Shashi Kant, J.

Learned counsel for the petitioner prays for and is granted three weeks' time to file rejoinder affidavit. List after three weeks.

Order Date :- 8.3.2016

RCT/-

Chief Justice's Court

Case :- WRIT - C No. - 54022 of 2012

Petitioner :- Arun Kumar Goel

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- B.C. Rai

Counsel for Respondent :- A.L. Yadav, Baleshwar Chaturvedi, S.C.

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Yashwant Varma, J.

The petition has been classified by the Registry and listed under the caption of 'a petition which is likely to be infructuous'.

The list of infructuous cases has been duly notified by the Registry for inviting objections. No objection has been received. Hence, the petition is dismissed as infructuous. However, we grant liberty to the petitioner, in the event the cause of action survives, to move the Court with an appropriate application.

There shall be no order as to costs.

Order Date :- 1.4.2016

RK

(Dr D Y Chandrachud, CJ)

(Yashwant Varma, J)